

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

Case:

**PLAINTIFF'S EVIDENTIARY
OBJECTIONS TO DEFENDANT'S
DECLARATION OF TYLER J.
O'CONNELL AND REQUEST FOR
JUDICIAL NOTICE**

Franciscus Dylan Rosario v. CSAA Insurance Exchange **Case No.:** CGC-25-631802

I. OBJECTIONS TO THE DECLARATION OF TYLER J. O'CONNELL

Plaintiff objects to the following portions of the Declaration of Tyler J. O'Connell filed in support of Defendant's Special Motion to Strike:

Objection 1: Material Objected To: Paragraph 2: "Plaintiff's allegations focus on Defendant's acts... including claims investigation and litigation activity." Grounds for Objection: Improper Legal Conclusion; Improper Opinion (Evid. Code §§ 800, 803). The declarant is attempting to interpret the legal scope and gravamen of Plaintiff's pleadings, which is the ultimate legal issue for the Court to decide.

Objection 2: Material Objected To: Paragraph 3: "All the acts alleged by Plaintiff arise from

1 Defendant's exercise of its constitutional right of free speech. . ." Grounds for Objection: Improper
2 Legal Conclusion. This is the ultimate legal issue for the Court to decide in Step 1 of the Anti-
3 SLAPP analysis.

4 **Objection 3:** Material Objected To: Paragraph 5: "Plaintiff has also served a large tranche of
5 duplicative, misnumbered, burdensome, and harassing discovery requests... intended to further
6 chill and punish..." Grounds for Objection: Lack of Personal Knowledge as to Plaintiff's intent
7 (Evid. Code § 702); Speculation; Improper Opinion.

8 **II. OBJECTIONS TO DEFENDANT'S REQUEST FOR JUDICIAL NO-** 9 **TICE**

10 Plaintiff objects to Defendant's Request for Judicial Notice of the 20 documents from the underly-
11 ing action on the following grounds:

12 **Objection 4: General Objection to Truth of Hearsay Matters** While the Court may take judicial
13 notice of the existence of the underlying court records (Exhibits E-N), it may **not** take judicial
14 notice of the truth of the factual matters asserted within those documents. Herrera v. Deutsche
15 Bank National Trust Co. (2011) 196 Cal.App.4th 1366, 1375. Defendant improperly attempts to
16 use the Request for Judicial Notice to implicitly argue that the underlying jury verdict establishes
17 the truth of CSAA's "no liability" position. The Court cannot accept the factual findings of the
18 prior jury as undisputed truth against Plaintiff in this distinct action for fraud and UCL violations.

19 **III. CONCLUSION**

20 Plaintiff respectfully requests that the Court sustain these evidentiary objections and strike the of-
21 fending portions of the O'Connell Declaration, and further limit the judicial notice of Defendant's
22 exhibits strictly to their existence, excluding the truth of any matters asserted therein.

23 Respectfully submitted,

24 Franciscus Dylan Rosario Plaintiff In Pro Per

Dated: April 13, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com